

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

1. DCSS V. CHAD MCCracken (OTHER PARENT: YULIYA PALSSON) PFS20200179

Respondent filed a Request for Order (RFO) on August 13, 2024, seeking custody and visitation orders. The parties appeared before the court on October 31st for hearing on the RFO. A review hearing was set on the issues of custody and visitation.

At the review hearing, the parties agreed to return to Child Custody Recommending Counseling (CCRC) to discuss the issues of a parenting plan and an Evidence Code section 730 evaluation. Another review hearing was set for July 10th.

At the July 10th hearing, the court adopted the recommendations as stated in the June 26, 2025 CCRC report and ordered a 730 evaluation. Another review hearing was set for November 6, 2025 at which time the court made several orders including its reiteration that a 730 evaluation was to be completed. A review hearing was set for February 5th which was continued to the present date for receipt and review of the 730 evaluation.

On February 25, 2026, Other Parent filed an RFO for custody and visitation orders. It was served on January 23rd, a month prior to filing. The hearing on that RFO is scheduled for May 14, 2026. Because it was served prior to filing, it is unclear to the court if Respondent was given proper notice of the hearing date and time. Additionally, according to the Proof of Service, the FL-300 was served without any of the other required documents.

Respondent filed his Income and Expense Declaration on March 3, 2026. It was served on February 20th.

The 730 evaluation was completed and the report was filed with the court on May 1, 2026.

On May 6th, a Reply and Supplemental Declaration of Respondent was filed and served by Respondent.

The Other Parent's Reply Declaration to Respondent's Supplemental Declaration was filed on May 7, 2026.

Petitioner is requesting unsupervised parenting time with the minor or, alternatively, nonprofessional supervised visits conducted by an agreed upon supervisor. She asks the court to change the mediator pending review of an administrative complaint she filed against Rebecca Nelson and any other orders the court deems appropriate.

Respondent asks that the court to deny Other Parent's requests and suspend all non-professional supervised visits between Other Parent and the minor. He asks that the

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court restrict any direct communications between the two pending further court order. He further asks that Other Parent be precluded from discussing any litigation matters with the minor or showing him any of the adult communications. Finally, he requests \$6,000 in Family Code § 271 sanctions.

After reviewing the filings as outlined above the court finds the current orders remain in the best interests of the minor. All prior orders remain in full force and effect. Other Parent is admonished that continued discussion of litigation matters (family or criminal) or showing the minor adult communications or communications regarding the ongoing legal proceedings may result in an order to show cause for contempt, sanctions, or other changes in her communication and visitation with the minor.

Other Parent's request to change the assigned mediator is denied.

The request for Section 271 sanctions is denied. Respondent requests \$6,000 for the fees incurred over the past 9 months however, Respondent has failed to establish the amount of fees actually incurred and how those fees were incurred directly as a result of Other Parent's frustration of the policy of the law to promote settlement and cooperation.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. OTHER PARENT IS ADMONISHED THAT CONTINUED DISCUSSION OF LITIGATION MATTERS (FAMILY OR CRIMINAL) OR SHOWING THE MINOR ADULT COMMUNICATIONS OR COMMUNICATIONS REGARDING THE ONGOING LEGAL PROCEEDINGS MAY RESULT IN AN ORDER TO SHOW CAUSE FOR CONTEMPT, SANCTIONS, OR OTHER CHANGES IN HER COMMUNICATION OR VISITATION WITH THE MINOR. OTHER PARENT'S REQUEST TO CHANGE THE ASSIGNED MEDIATOR IS DENIED.

RESPONDENT'S REQUEST FOR SECTION 271 SANCTIONS IS DENIED.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.